

Court No. - 37

Case :- WRIT - C No. - 17944 of 2012

Petitioner :- Om Prakash Agrawal

Respondent :- Kanpur Electricity Supply Co. Ltd. And Others

Petitioner Counsel :- Dileep Chandra Mishra, Anup Kumar, Divya Swaroop Awasthi, Zafar Naiyer

Respondent Counsel :- Mridul Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

Put up on 17.4.2012 in the additional cause list to enable Smt. Mridul Tripathi appearing for the respondents to seek instructions in the matter.

Order Date :- 10.4.2012

SP/

Court No. - 37

Case :- WRIT - C No. - 17944 of 2012

Petitioner :- Om Prakash Agrawal

Respondent :- Kanpur Electricity Supply Co. Ltd. And Others

Petitioner Counsel :- Dileep Chandra Mishra, Anup Kumar, Divya Swaroop Awasthi, Zafar Naiyer

Respondent Counsel :- Mridul Tripathi, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

Ms. Mridul Tripathi, learned counsel appearing for the respondent has taken instructions and informs the Court that the electricity supply to the petitioner's industry was disconnected on 3.11.2008. Since thereafter there is no supply to the petitioner's factory. The petitioners prayed for restoration of his electricity connection, cannot be considered until he deposits the outstanding demand of Rs.5,11,531/- for which a recovery certificate has been issued, and which is under challenge in this writ petition.

The petitioner has relied upon an award of the Electricity Consumer Dispute Redressal Forum dated 16.6.2010 by which it was directed that the KESCO will forward amended bills after 15.5.2008 in accordance with the meter reading. The petitioner had filed a complaint before the U.P. Electricity Regulatory Commission in which by order dated 8.7.2011 the Commissioner recorded statement of Shri A.S. Rakhra, the counsel for the respondents that the order of CDRF has been complied and that same has been submitted on 23.6.2011.

Shri Jafar Naiyer submits that the order of the Consumer Forum was not complied with and that bills sent by the respondents after the order of the Forum included the past liability, which includes the minimum charges and fixed charges.

Ms. Mridul Tripathi submits that under the statutory tariff, the respondents are entitled to bill for fixed charges and minimum consumption guarantee. The petitioner has not applied for permanent disconnection to be exemption from these charges and thus even if there was no consumption and there is negative billing after the order of the Forum, the old dues as well as the fixed charges and minimum charges have to be deposited.

The petitioner has not explained the circumstances in which his

counsel gives statement that orders of Forum have been complied with. Further we also find that the respondents have not given the break up of the justification of the demand of Rs.5,11,531/-.

Let the counter affidavit be filed explaining the details of the bills, which is under challenge in this writ petition.

List on 1st May, 2012.

Order Date :- 17.4.2012

SP/

Court No. - 37

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Respondent :- Kanpur Electricity Supply Co. Ltd. And Others

Petitioner Counsel :- Dileep Chandra Mishra, Anup Kumar, Divya Swaroop Awasthi, Zafar Naiyer

Respondent Counsel :- Mridul Tripathi, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble B. Amit Sthalekar, J.

Sri P. K. Tripathi, learned counsel appearing for the respondent KESCO has filed counter affidavit. He prays for a week's time to file reply to the supplementary affidavit filed by the petitioner.

List on 9.5.2012, in the additional cause list.

Order Date :- 1.5.2012

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Court No. - 37

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Petitioner :- Om Prakash Agrawal

Respondent :- Kanpur Electricity Supply Co. Ltd. And Others

Petitioner Counsel :- Dileep Chandra Mishra, Anup Kumar, Divya Swaroop Awasthi, Zafar Naiyer

Respondent Counsel :- Mridul Tripathi, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

1. Heard Sri Zafar Naiyer, Senior Advocate, assisted by Sri Anup Kumar, learned counsel for the petitioner. Ms. Mridula Tripathi, learned counsel, appears for Kanpur Electricity Supply Company (KESCO), and other respondents.

2. The petitioner's electricity connection as industrial consumer for 26 H.P. (LMV-6), was disconnected on 3.11.2008. An inspection was made, for which the electricity connection was reconnected for MRI inspection. After the MRI inspection, the electricity connection was again disconnected on 3.12.2009. The petitioner has not opted for permanent disconnection and consequently bills were prepared against him, for the minimum charges, giving rise to this writ petition.

3. The petitioner approached the Electricity Consumer Redressal Forum, Kanpur, in Case No.5 of 2010. The Forum after hearing the petitioner and calling for the report from KESCO found that the petitioner is running an industry. His son also has an electricity connection in the same premises from another source, of which he has no complaint with KESCO. The Forum considered the petitioner's complaint that he was not receiving the supply on all the three phases and found that on 23.12.2008 an inspection was made by two Junior Engineers, in which it was found that electricity supply is being provided with three phases, and was

recording 248 volts. The Forum was of the view that the petitioner is liable to pay the bills on the basis of meter reading and minimum charge from 15.5.2008 and directed that the bills to be corrected accordingly.

4. The petitioner filed an appeal in U.P. Electricity Regulatory Commission against the order of the Forum. He, however, confined his complaint to the non-compliance of the order of the Forum dated 16.6.2010. On 8.7.2011, the petitioner was present before the Commission. The respondents appeared on 23.6.2011, through their counsel and submitted that the order of the Forum has been complied with. The Commission, in view of the compliance, did not proceed further and disposed of the appeal accordingly.

5. It is submitted by Sri Zafar Naiyer that the electricity was not supplied in all three phases and thus the petitioner was unable to run the industry. He submits that repeatedly complaints were made but nothing was done to rectify the supply. He submits that in any case, under paragraph 4.37 of U.P. Electricity Supply Code, 2005, after the temporary disconnection, the petitioner's connection should have been permanently disconnected after six months.

6. The petitioner did not want the electricity supply to be disconnected. He still wants to run the industry. He wants his electricity supply to be resumed and regular supply be made in three phases. According to the petitioner the bill should be prepared on actual consumption and not on the basis of minimum charge, which he is not liable to pay.

7. The petitioner is an industrial consumer, classified in rate schedule LMV-6. The department has to make 26 H.P. connection available to him, and has to incur costs on infrastructure to make the electricity supply available of the required capacity, for which the petitioner is liable to pay the minimum charge under the statutory rate schedule. The bills for minimum charge have to be paid, until the connection is permanently disconnected.

8. We do not find that the petitioner had pressed for quashing the order dated 16.6.2010 passed by the Consumer Grievance Redressal Forum (CGRF) before the Commission. Rather he insisted for compliance of the order, which has been duly complied with and the bills were prepared strictly in accordance with the directions of CGRF.

9. In the counter affidavit the details given in the bills has been explained for which the recovery has been initiated against the petitioner.

10. We do not find that the KESCO has committed any error or has acted against the provisions of Indian Electricity Act, 2003, or the U.P. Electricity Supply Code, 2005, in the bills prepared to be paid by the petitioner. The petitioner is liable to pay the bills on the basis of minimum charge until he opts for permanent disconnection, which can be made only after depositing the entire dues determined against him.

11. The writ petition is dismissed.

Order Date :- 9.5.2012

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